

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

19. ERIC WEXELMAN V. JAMAICA WEXELMAN (JOINED PARTY: SPENCER WEXELMAN)
24FL0838

Petitioner's March 2, 2026 Request for Order

On March 2, 2026, Petitioner filed a Request for Order (RFO) requesting release of funds from the sale of the home as well as for Respondent to provide documents and personal property items to joined party Spencer Wexelman, following the court's denial of Petitioner's ex parte request for the same orders. There is no Proof of Service showing Respondent was properly served with the RFO.

Respondent filed a Responsive Declaration on May 12, 2026. In her declaration she states that as of the date of the filing, she had not been served. She was only aware of the requests due to the ex parte application. She requests the court deny Petitioner's requests.

The court finds good cause to proceed on the merits, as Respondent has filed a Responsive Declaration which addresses the requests raised in Petitioner's motion. The court denies Petitioner's requests, without prejudice and reserves on all requests until the time of trial.

All prior order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

Respondent's May 4, 2026 Request for Order

Respondent filed an RFO on May 4, 2026, seeking spousal support, attorney's fees, bifurcation, restoration of her former name, sanctions, fees for a forensic accountant, as well as reimbursements. Respondent did not concurrently file an Income and Expense Declaration. Upon review of the court file, there is no Proof of Service for this document.

Petitioner filed a Responsive Declaration, as well as an Income and Expense Declaration on June 11, 2026. Respondent and Joined Party were served the same day. Petitioner does not raise the issue of service, therefore, the court deems it to have been waived. Petitioner opposes modification of spousal support, reimbursement of support, sanctions, attorney's fees, reimbursement of vocational costs, as well as fees for a forensic accountant. Petitioner does not oppose bifurcation or restoration of Respondent's former name.

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Joined Party has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. As to the request for reservation over the issue of spousal support, that request is granted. The court reserves on spousal support to the time of trial. The court is not granting the request to retroactively modify support to December 9, 2024.

Respondent's request for Family Code section 2030 attorney's fees is denied. Respondent has failed to concurrently file an Income and Expense Declaration. This denial is without prejudice.

The court reserves on Respondent's request for reimbursement of spousal support to the time of trial.

The court denies Respondent's request for fees for a forensic accountant. Respondent is free to retain a forensic accountant if she finds one to be necessary. This denial is without prejudice, and the court reserves jurisdiction to reallocate the costs at the time of trial.

The court reserves on the issue of the "misuse of community funds" to the time of trial.

The court reserves on the issue of the "Gift of Fund-2174 Talon Drive" until the time of trial.

The court denies the request for reimbursement of the cost for the vocational evaluation.

The court reserves on Respondent's requests for Family Code section 271 sanctions until the time of trial.

The court finds the alleged violations of the Domestic Violence Restraining Order are not properly before the court.

Parties are ordered to appear for the hearing on the issue of the bifurcation and restoration of Respondent's former name.

All prior order remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF THE BIFURCATION AND RESTORATION OF RESPONDENT'S FORMER NAME.

PETITIONER'S MARCH 2, 2026 REQUEST FOR ORDER

THE COURT FINDS GOOD CAUSE TO PROCEED ON THE MERITS. THE COURT DENIES PETITIONER'S REQUESTS, WITHOUT PREJUDICE AND RESERVES ON ALL REQUESTS UNTIL THE TIME OF TRIAL.

ALL PRIOR ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

RESPONDENT'S MAY 4, 2026 REQUEST FOR ORDER

RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES IS DENIED. RESPONDENT HAS FAILED TO CONCURRENTLY FILE AN INCOME AND EXPENSE DECLARATION. THIS DENIAL IS WITHOUT PREJUDICE.

THE COURT RESERVES ON RESPONDENT'S REQUEST FOR REIMBURSEMENT OF SPOUSAL SUPPORT TO THE TIME OF TRIAL.

THE COURT DENIES RESPONDENT'S REQUEST FOR FEES FOR A FORENSIC ACCOUNTANT. RESPONDENT IS FREE TO RETAIN A FORENSIC ACCOUNTANT IF SHE FINDS ONE TO BE NECESSARY. THIS DENIAL IS WITHOUT PREJUDICE, AND THE COURT RESERVES JURISDICTION TO REALLOCATE THE COSTS AT THE TIME OF TRIAL.

THE COURT RESERVES ON THE ISSUE OF THE "MISUSE OF COMMUNITY FUNDS" TO THE TIME OF TRIAL.

THE COURT RESERVES ON THE ISSUE OF THE "GIFT OF FUND-2174 TALON DRIVE" UNTIL THE TIME OF TRIAL.

THE COURT DENIES THE REQUEST FOR REIMBURSEMENT OF THE COST FOR THE VOCATIONAL EVALUATION.

THE COURT RESERVES ON RESPONDENT'S REQUESTS FOR FAMILY CODE SECTION 271 SANCTIONS UNTIL THE TIME OF TRIAL.

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THE COURT FINDS THE ALLEGED VIOLATIONS OF THE DOMESTIC VIOLENCE RESTRAINING ORDER ARE NOT PROPERLY BEFORE THE COURT.

PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF THE BIFURCATION AND RESTORATION OF RESPONDENT'S FORMER NAME.

ALL PRIOR ORDER REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.